

Silencing by Design ? Copyright Enforcement, Platform Governance, and Democratic Participation in Kenya’s Digital Public Sphere A Discussion Paper on Platform Governance and Democratic Communication

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Abstract

This paper examines the intersection of copyright enforcement, platform governance, and democratic participation in Kenya’s digital public sphere. Drawing on documented cases from April 2024 and the #RejectFinanceBill2024 protests, it argues that regardless of what triggers a given mute a legitimate rights-holder match, an overzealous automated classifier, or a bad-faith report the effect of silencing political audio is a measurable loss to democratic communication. The paper deliberately stops short of alleging that any specific act of muting was intentional or politically motivated; its claim is about consequences, not motives. It situates this problem within Kenya’s constitutional guarantees of expression, access to information, media freedom, and assembly, and proposes a governance framework for platforms, regulators, and citizens that balances intellectual-property enforcement against those guarantees.

1 Introduction